

Line 6

Case Name: *Jane Doe v. Vivek Paul Gundotra, et al.*

Case No.: 24CV452118

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant Vivek Paul Gundotra (“Defendant”) moves to compel Plaintiff Jane Doe (“Plaintiff”) to answer Deposition Questions Nos. 1-8, which Plaintiff did not answer at deposition after her lawyer objected and instructed Plaintiff not to answer them. Notice of Motion (the “Motion”) at 2:4-7 (filed: Dec. 5, 2026). The Motion is made on the grounds that:

- (1) Plaintiff’s responses during her deposition are incomplete;
- (2) Plaintiff’s counsel improperly instructed Plaintiff not to answer;
- (3) Defendant’s interest in the information sought by the questions outweighs Plaintiff’s privacy interest, to the extent that Plaintiff meets the burden of showing a privacy interest exists; and
- (4) Good cause exists to compel discovery under Code of Civil Procedure Sections 2027.010 and 2025.480.

Motion at 2:7-12.

The Motion came on for hearing on July 8, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

Resolution of this Motion is straightforward.

This is a civil action claiming that Defendant committed conduct against Plaintiff constituting sexual harassment, sexual assault, or sexual battery. Defendant raises a defense of motive—that Plaintiff fabricated her claims after Defendant refused her monetary demands (the “Motive Defense”). Unless barred by privilege or another statutory prohibition established by our Legislature, Defendant here may seek to discover information in support of the Motive Defense because such information is either relevant or reasonably calculated to lead to the discovery of admissible information in this case. *See* Order dated February 2, 2026 at 6:14-7:16; C.C.P. § 2017.010 (broad scope of civil discovery).

To protect important privacy interests of Plaintiff and all parties in this case, the Court on December 8, 2025 signed a Stipulated Protective Order jointly filed by the parties, which among other things authorizes a party to “designate information disclosed during a deposition as ‘Confidential,’” which strictly limits the use of such designated information

“solely for the purpose of this case” and limits disclosure of such designated information only to categories of persons defined and listed in the Stipulated Protective Order such as counsel, expert witnesses, or “a person that the designating party agrees to in writing.” Stipulated Protective Order at ¶¶ 3, 4, 5 (filed by Clerk of Court: Feb. 5, 2026). The Court endorsed this Stipulated Protective Order as it strikes the proper balance, in accordance with bedrock principles of California law enshrined in our Constitution, of protecting the parties’ privacy while enabling parties to discover and use relevant information that will help the trier of fact resolve disputes of fact in civil actions at trial by jury.

Seeking to discover information in support of the Motive Defense, Defendant asked Plaintiff these Deposition Questions Nos. 1-8 at her August 20, 2025 deposition:

- Deposition Question No. 1: “Was there ever an allegation made against you at Revolve?”
- Deposition Question No. 2: “Were you accused of a return scheme at Revolve?”
- Deposition Question No. 3. After noting that Plaintiff was not employed between May 2020 to September 2021, asking: “What was your source of income during that period?”
- Deposition Question No. 4: “How about Damian, was he similarly generous on the level that Vic was in those two years?”
- Deposition Question No. 5. [Directly after asking “Did [Defendant] Gundotra ever pay you for any kind of sex act?” asking:] “Has anyone ever offered to pay you money for sex?”²
- Deposition Question No. 6: “Did you ever ask [Defendant] for money . . . And what were the circumstances of that?”
- Deposition Question No. 7: “Approximately when did you ask [Defendant] for money?”
- Deposition Question No. 8: “How much money did you ask him for?”

Def. Separate Statement In Support of Motion at 2:8-10, 5:7-8, 7:26-28, 10:27-28; 13:7-8, 15:24-25, 18:23-24, 21:20 (citing Deposition Transcript, attached as Ex. D to Declaration of Hillary Weddell In Support of Motion (the “Weddell Decl.”)).

At this deposition, Plaintiff’s counsel instructed Plaintiff not to answer Depositions Questions Nos. 1-8 on the ground that each question violated her “right to privacy.” Def. Separate Statement at 2:14, 5:12, 8:3, 11:4, 13:12, 15:28, 18:26-27, 21:22-23.³

² These two back-to-back questions appear in the August 20, 2025 Deposition Transcript at 177:13-17 (Weddell Decl., Ex. D).

³ While Plaintiff’s counsel also objected on the record to most of these Depositions Questions as “not reasonably calculated to led to the discovery of admissible information,” the Court will reasonably assume that experienced Plaintiff’s counsel did not instruct her client not to answer on *that* basis—as doing so would have been so flagrantly improper and a misuse of the discovery process under Code of Civil Procedure Section 2023.010 as to subject Plaintiff’s counsel to sanctions against her personally. *See Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal. App. 4th 1006, 1014 (“even

After reviewing the Deposition Transcript and attempting in good faith but being unable to resolve with Plaintiff's counsel this discovery dispute, Defendant on December 5, 2025 filed this Motion to compel Plaintiff to answer Deposition Questions Nos. 1-8, along with reasonable follow-up questions in light of Plaintiff's answers to Deposition Questions Nos. 1-8.

In Plaintiff's Opposition papers filed on June 24, 2026, Plaintiff—quite reasonably and appropriately in the view of the Court—withdrew her instruction not to answer to six of eight of these questions, specifically to Deposition Questions Nos. 1, 2, 3, 6, 7, and 8 set forth above. Opp. at 3:17-20 (filed: June 24, 2026). Plaintiff expressly agrees to answer these six deposition questions, subject to the protections of the Stipulated Protective Order. *Id.* The Court will hold Plaintiff to this representation now.⁴

Accordingly, the Motion is **GRANTED IN PART** and Plaintiff is **ORDERED** on July 30, 2026 at 10:00 AM to appear in person to answer Deposition Questions Nos. 1, 2, 3, 6, 7, and 8, along with reasonable follow-up questions in light of Plaintiff's answers to these six deposition questions, at the office of McManis Faulker at 50 West San Fernando Street, 10th Floor, San Jose, California, which is located less than 5 minutes away (by foot or by car) from this Courthouse where Plaintiff brought this action. And while Plaintiff's counsel may put on the record any appropriate, non-speaking objections during this July 30, 2026 deposition, Plaintiff's Counsel is **ORDERED** *not* to instruct Plaintiff not to answer these six deposition questions and appropriate follow-up questions to them. Plaintiff will provide truthful, non-evasive answers to these deposition questions on the record.

Which leaves only Deposition Questions Nos. 4 and 5 to resolve, which the Court will address in turn now.

Deposition Question No. 4 is: “How about Damian, was he similarly generous on the level that Vic was in those two years?” The Court agrees with Defendant that this question seeks discoverable information regarding financial motivations and expectations of Plaintiff that is relevant or reasonable likely to lead to the discovery of admissible information for the Motive Defense. Moreover, Plaintiff has failed to show the Court how this discrete

were the questions designed to elicit irrelevant evidence, irrelevance alone is an insufficient ground to justify preventing a witness from answering a question posed at a deposition”). Rather, reading the objections and instructions not to answer at the deposition in the light most favorable to Plaintiff's counsel, and also being sensitive to the fact that the Stipulated Protective Order that the Court signed on December 8, 2025 was not yet operational when this August 20, 2025 deposition was taken, the Court will assume for purposes of resolving this Motion that the only ground asserted at the deposition for Plaintiff not to answer was on the constitutional right to privacy, which *if* established can be proper ground to instruct a witness not to answer at a deposition.

⁴ Plaintiff is correct that Plaintiff may designate this deposition testimony, as appropriate, under the provisions of the Stipulated Protective Order that the Court signed on December 8, 2025, and which is filed on the case docket on February 5, 2026.

question about Damian's relative generosity violates Plaintiff's constitutional right to autonomy privacy. In other words, as Plaintiff's "interests in making intimate personal decisions or conducting personal activities without observation, intrusion, or interference"⁵ are not infringed or violated by information about whether Damian was relatively generous or not, it was improper to instruct Plaintiff not to answer Deposition Question No. 4 based on the constitutional right to autonomy privacy.

Moreover, to the extent that any other privacy interest is implicated by Deposition Question No. 4 or Plaintiff's answer to it, Plaintiff may designate this testimony at her July 30, 2026 deposition as Confidential under the Stipulated Protective Order that is operational in this case. In this way, Defendant will obtain the discoverable information sought while Plaintiff's privacy interests, if any, regarding Deposition Question No. 4 will be protected.

To be clear, at the August 20, 2025 the only two objections to Deposition Question No. 4 made by Plaintiff's counsel were: (1) "I'm going to object to the extent it's not reasonably calculated to lead to the discovery of admissible evidence at the time of trial. [2] Violation of a right to privacy. I'm going to instruct her not to answer." Dep. Tr. at 168:4-7 (Weddell Decl., Ex. D). The Court has now overruled both of those objections above. But in her Opposition brief Plaintiff raises for the first time an objection to Deposition Question No. 4 under Code of Civil Procedure Section 2017.220, which states:

"In any civil action alleging conduct that constitutes sexual harassment, sexual assault, or sexual battery, any party seeking discovery concerning the plaintiff's sexual conduct with individuals other than the alleged perpetrator shall establish specific facts showing that there is good cause for that discovery, and that the matter sought to be discovered is relevant to the subject matter of the action and reasonable calculated to lead to the discovery of admissible evidence. This showing shall be made by a noticed motion[.]"

C.C.P. § 2017.220, cited and argued at Opp. Br. at 5:24-7:18. Particularly given the express and mandatory statutory command of the Legislature that "[t]his showing shall be made by a noticed motion[.]" the Court does not view this objection under Section 2017.220 as being waived by failure to raise it during the deposition.⁶ In other words, if Section 2017.220 applies to the information sought during discovery through Deposition Question No. 4, Defendant would have an affirmative obligation imposed by the plain text of this statute to make a showing of "good cause for that discovery . . . by a noticed motion" *before* seeking to elicit that information. C.C.P. § 2017.220. So even though Plaintiff did not raise the Section 2017.220 objection at the deposition, Plaintiff is allowed to raise it now in Opposition to this Motion to compel.

⁵ *Hill v. National Collegiate Athletic Assn.*, (1994) 7 Cal. 1, 35.

⁶ Moreover, the Court reads this objection as falling within the ambit of Code of Civil Procedure Section 2025.460(c), a type of objection that is "*not* waived by failure to object during the deposition." C.C.P. § 2025.460(c) (emphasis added).

That said, this Section 2017.220 objection is **OVERRULED** as to Deposition Question No. 4 because deposition Question No. 4 does not seek “discovery concerning the plaintiff’s sexual conduct with individuals other than the alleged perpetrator[.]” All this question asks is whether Damian was “similarly generous on the level that Vic was in those two years?” And Plaintiff fails to show how this discrete question about Damian’s relative generosity calls for information about Plaintiff’s sexual conduct with individuals other than Defendant. Hence, Deposition Question No. 4 does not cross that line forbidden by Section 2017.220, and thus is not a ground to stop Plaintiff from answering this question which, as the Court has already ruled above, calls for discoverable, non-privileged information.

Accordingly, the Motion is **GRANTED IN PART** in that in addition to appearing in person and answering Deposition Questions No. 1, 2, 3, 6, 7, and 8, Plaintiff is **FURTHER ORDERED** on July 30, 2026 at 10:00 AM to appear in person also to answer Deposition Question No. 4, along with reasonable follow-up questions in light of Plaintiff’s answers to this deposition question, at the office of McManis Faulker at 50 West San Fernando Street, 10th Floor, San Jose, California. In asking reasonable follow-up questions to Deposition Question No. 4, defense counsel will *not* ask any questions that cross the line forbidden by Section 2017.220 as explained above. And while Plaintiff’s counsel may put on the record any appropriate, non-speaking objections during this July 30, 2026 deposition, Plaintiff’s Counsel is **ORDERED** *not* to instruct Plaintiff not to answer Deposition Question No. 4. Plaintiff will provide truthful, non-evasive answers to Deposition Question No. 4 on the record.

Which brings us to Deposition Question No. 5, which Defendant in his Reply brief argues does not “seek information regarding her sexual conduct with persons other than Defendant.” Reply at 6:15-16. But that’s not true in light of the deposition question that defense counsel asked *immediately* before Deposition Question No. 5, as shown in the Deposition Transcript:

MR. ATKINSON: “Did [Defendant] Gundotra ever pay you ***for any kind of sex act?***”

A. No.

[Deposition Question No. 5]: ***Has anyone*** offered to pay you money for sex?

August 20, 2025 Deposition Transcript at 177:13-17 (Weddell Decl., Ex. D) (emphasis added).

Read together, whether defense counsel intended to or not, these back-to-back questions do exactly what Section 2017.220(a) forbids—“seek[] discovery concerning the plaintiff’s sexual conduct with individuals other than the alleged perpetrator”—which Defendant may not do *unless and until* Plaintiff first brings and wins a noticed motion “showing that there is good cause for that discovery[.]” C.C.P. § 2017.2020(a).

Here, by asking if Defendant paid Plaintiff for any kind of sex act, and then immediately asking, well, has anyone else[?], this Deposition Question is reasonably read

by this Court and naturally would be interpreted by the jury at trial as asking about whether Plaintiff engaged in any sex acts for pay with *anyone else* other than Defendant (the alleged perpetrator). And that's what Section 2017.220(a) forbids unless and until Plaintiff brings and wins a motion showing good cause for that discovery.

And while Defendant argues in his Reply brief that the “same record supplies the particularized good cause” (Reply at 8:5-6), the standard set by the Legislature not only that Defendant show good cause for that discovery but also *specifically* that “[t]his showing shall be made by a noticed motion[.]” C.C.P. § 2017.220(a). And it is undisputed that Defendant has not yet brought a Motion under Section 2017.220(a) to establish good cause for this discovery.

In making this ruling, the Court has not yet considered let alone decided whether Defendant could or could not make a showing of good cause for the discovery sought through Deposition Question No. 5. The Court more modestly rules that because—

(a) the information sought by Deposition Question No. 5 falls within the scope of Section 2017.220(a) as the Court finds that it does concern Plaintiff's sexual conduct with individuals other than Defendant,

(b) Section 2017.220(a) expressly requires Defendant seeking such discovery to bring a noticed motion to show good cause for that discovery, and

(c) Defendant has not brought that noticed motion,

—hence, Section 2017.220(a) bars Defendant from asking Deposition Question No. 5 now.

Accordingly, the Court **DENIES IN PART** the Motion insofar as it seeks to compel Plaintiff to answer Deposition Question No. 5 now. This ruling is without prejudice, as Defendant may bring a noticed motion to try to make the showing of good cause for that discovery under Section 2017.220(a). While Defendant may bring that noticed motion, the Court expresses no view on the wisdom of whether Defendant should actually do so to seek this discovery that the Court rules *does* concern Plaintiff's sexual conduct with individuals other than the alleged perpetrator, Defendant Gundotra.

Conclusion & Order

The Motion is **GRANTED IN PART** as follows: Regarding Deposition Questions Nos. 1, 2, 3, 4, 6, 7, and 8 set forth above, Plaintiff is **ORDERED** on July 30, 2026 at 10:00 AM to appear in person to answer Deposition Questions Nos. 1, 2, 3, 4, 6, 7, and 8, along with reasonable follow-up questions in light of Plaintiff's answers to these deposition questions, at the office of McManis Faulker at 50 West San Fernando Street, 10th Floor, San Jose, California. And while Plaintiff's counsel may put on the record any appropriate, non-speaking objections during this July 30, 2026 deposition, Plaintiff's Counsel is **ORDERED** *not* to instruct Plaintiff not to answer these deposition questions and appropriate follow-up questions to them. Plaintiff will provide truthful, non-evasive answers to these deposition questions on the record.

The Motion is **DENIED IN PART** as follows: Regarding Deposition Question No. 5, Code of Civil Procedure Section 2017.220(a) bars Defendant from asking that discovery question now unless and until Defendant brings and wins a noticed motion for good cause for that discovery—which Defendant has not done yet.

SO ORDERED.

Date: July 8, 2026

Hon. Vincent I. Parrett
Superior Court of the State of California,
County of Santa Clara

Line 7

Case Name: *Jayanthi Rangarajan v. Sutter Law Firm PC, et al.*

Case No.: 25CV457216

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendants Sutter Law Firm PC, Eric Milliken, and Ian Bennett-Goldberg (“Defendants”) demur to the First Amended Complaint (“FAC”) of Plaintiff Jayanthi Rangarajan under Code of Civil Procedure Sections 430.10(e) & (f) and Section 430.30(a). Notice of Demurrer (the “Demurrer”) at 1:23-27 (filed: Dec. 9, 2025). The grounds for this Demurrer are as follows:

- (1) The FAC is uncertain. C.C.P. § 430.10(f).
- (2) Plaintiff fails to state facts sufficient to constitute a cause of action for professional negligence and breach of contract, and she is unable to plead such facts because they do not exist. C.C.P. § 430.10(e).
- (3) Plaintiff’s claims are barred by the mediation privilege. C.C.P. § 430.30(a).

Demurrer at 2:3-13.

The Demurrer came on for hearing on July 8, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Background

On November 6, 2025, after Defendants had demurred and moved to strike the original Complaint, rather than argue the that original Complaint was well pleaded Plaintiff filed the FAC asserting two Causes of Action:

- (1) First Cause of Action for “Professional Negligence” and
- (2) Second Cause of Action for “Breach of Contract.”

FAC at ¶ 8 (listing Causes of Action) & FAC Attachments (filed Nov. 6, 2025).

On December 9, 2025, Defendants filed this Demurrer to the FAC.

Having filed no Opposition, Plaintiff has not opposed this Demurrer to the FAC.